

Serial: 258406

IN THE COURT OF APPEALS OF THE STATE OF MISSISSIPPI

No. 2024-KM-00839-COA

***MATTHEW O. REARDON A/K/A
MATTHEW REARDON A/K/A
MATTHEW OLIVER REARDON***

FILED

Appellant

JUL 21 2025

v.

OFFICE OF THE CLERK
SUPREME COURT
COURT OF APPEALS

STATE OF MISSISSIPPI

Appellee

ORDER

This matter comes before the undersigned on Matthew O. Reardon's pro se "Motion for Summary Reversal or in the Alternative, Motion to Expedite Decision Due to Continued Compounding Harm." Reardon requests that this Court summarily reverse and vacate the decision of the Lafayette County Circuit Court due to the appellee's failure to file a brief in this misdemeanor appeal. "An appellee's failure to file a brief on appeal is tantamount to confession of the errors alleged by the appellant. However, automatic reversal is not required if this Court can say with confidence that the case should be affirmed." *Webber v. State*, 197 So. 3d 926, 927 (¶5) (Miss. Ct. App. 2016). Upon review of the merits of Reardon's appeal, this Court will consider whether automatic reversal is required. At this time, however, Reardon's request for summary reversal is denied without prejudice.

Alternatively, Reardon requests that this Court expedite a decision in this appeal "to prevent further harm and delay." "A civil case may be expedited only by special order, while expedition in hearing a criminal case requires no such order." M.R.A.P. 23 cmt. "Criminal

cases may be set for call on any day when . . . the Court of Appeals is sitting, and in such numbers as it may designate.” M.R.A.P. 23(b). Reardon’s appeal is a criminal matter, and the appeal has been submitted to the Court for a decision on the merits. The Court finds no special order expediting the appeal is necessary. This Court will issue a decision in this appeal in due course. The motion is not well taken.

IT IS THEREFORE ORDERED that Reardon’s pro se “Motion for Summary Reversal or in the Alternative, Motion to Expedite Decision Due to Continued Compounding Harm” is denied without prejudice in part and denied in part.

SO ORDERED, this the 21st day of July, 2025.



DONNA M. BARNES, CHIEF JUDGE